

10 & 11 GEO. 6.

Ministry of Health
Provisional Order Confirmation (Leeds) Act, 1947.

Ch. xxiii.



CHAPTER xxiii.

An Act to confirm a Provisional Order of the Minister of Health relating to the city of Leeds.

[31st July 1947.]

WHEREAS under the provisions of the Public Health Act 38 & 39 Vict. 1875 the Minister of Health has made a Provisional Order c. 55. which needs confirmation by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order of the Minister of Health which is set out in the Order in schedule to this Act is hereby confirmed and shall have full schedule validity and force. confirmed.

2. This Act may be cited as the Ministry of Health Provisional Short title. Order Confirmation (Leeds) Act 1947.

SCHEDULE.

CITY OF LEEDS.

Provisional Order altering a local Act and a Provisional Order.

38 & 39 Vict.
c. 55.
5 Edw. 7. c. 1.

10 & 11 Geo. 5.
c. cx.

WHEREAS the lord mayor aldermen and citizens of the city of Leeds acting by the council (in this Order called "the Corporation") are the local authority for the purposes of the Public Health Act 1875 and the unrepealed provisions of the Leeds Corporation (Consolidation) Act 1905 (in this Order called "the local Act") as altered by certain Provisional Orders which were duly confirmed by Parliament but which do not affect the subject-matter of this order and the Leeds Order 1920 (in this Order called "the Order of 1920") which was duly confirmed by the Ministry of Health Provisional Orders Confirmation (No. 3) Act 1920 are in force in the said city:

And whereas by section 118 (Power to take tolls &c. in respect of markets and slaughter-houses) of Part VI of the local Act the Corporation are subject as provided in that section empowered from time to time to demand and receive tolls rents stallages entrance fees and charges (not exceeding the tolls rents stallages entrance fees and charges specified in the schedule to the Order of 1920) from persons selling or offering or exposing for sale cattle corn meat or articles in any market or fair of the Corporation or using or occupying shops stalls standings or other conveniences in any such market or fair or frequenting any such market or fair or using any weighing-house or place weights measures scales or machines in any such market or fair or using any slaughter-house or dead meat market of the Corporation and the Corporation are desirous of substituting new tolls rents stallages entrance fees and charges for the tolls rents stallages entrance fees and charges specified as aforesaid:

And whereas the Corporation have applied to the Minister of Health (in this order called "the Minister") for the issue of a Provisional Order to alter or amend the local Act and the Order of 1920 for the purpose aforesaid:

Now therefore the Minister in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

Short title and
commencement

1. This Order may be cited as the Leeds Markets Order 1947 and shall come into operation on the date of the Act of Parliament confirming it.

2.—(1) The local Act shall be altered by the substitution for the schedule to the Order of 1920 of the schedule to this Order.

Alteration of
tolls etc. in
respect of
markets and
slaughter-
houses.

(2) The Corporation may with the sanction of the Secretary of State from time to time alter or add to the tolls rents stallages entrance fees and charges specified in the schedule to this Order and any such altered tolls rents stallages entrance fees and charges shall from the date on which they come into operation be substituted for the corresponding tolls rents stallages entrance fees and charges payable under the said schedule.

3.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of the markets undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities and accumulating the same until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the buildings or works forming part thereof or for any extension of the said buildings or works or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

Reserve fund
for markets
undertaking.

(2) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at any time have reached or may have been reduced below the prescribed maximum.

SCHEDULE.

TOLLS AND STALLAGES IN A COVERED MARKET.

s. d.

Tolls payable each day for every animal bird article or thing offered for sale and whether sold or not in any covered market otherwise than from any stand shop stall or bench or any defined compartment or space on the surface of the ground—

Carcases—

For each carcase of a bull ox steer cow or heifer	...	3	0
For each side or half of a carcase	...	1	6
For each quarter or less part of a carcase	...		9
For each carcase of a calf sheep lamb or pig	...	1	6
For each half or less part of a carcase	...		9
For each carcase or part of a carcase of a sucking pig	...		4

Offal and other meat—

For each box...	...	1	0
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	s.	d.
Butter and eggs—		
Butter—		
For each package weighing not more than twelve pounds	3	
For each package weighing more than twelve pounds—additional toll for each six pounds or part of six pounds excess weight	2	
Eggs—		
For each package of not more than three dozen ...	2	
For each package of more than three dozen—additional toll for each dozen or part of a dozen in excess of three dozen	1	
Ducks geese and turkeys—		
For each live or dead	1	
Game—		
For each hare leveret pheasant partridge grouse or other game	1	
Pigeons—		
For any number not more than twelve live or dead ...	3	
For any number more than twelve—additional toll for each six or part of six in excess of twelve live or dead ...	2	
Rabbits—		
For each five couple or part of five couple	3	
Fish—		
For each barrel box or other package of fish crabs or lobsters weighing not more than one hundredweight... ..	1	0
For each barrel box or other package weighing more than one hundredweight—additional toll for each fifty-six pounds or part of fifty-six pounds excess weight	6	
For each pad or other package of mackerel or other wet fish containing not more than fifty	6	
For each pad or other package containing more than fifty—additional toll for each twenty-five or part of twenty-five in excess of fifty	3	
For each box or other package of bloaters containing not more than fifty	3	
For each box or other package containing more than fifty—additional toll for each twenty-five or part of twenty-five in excess of fifty	2	
For each bag or other package of oysters mussels whelks periwinkles or cockles containing not more than one hundredweight	6	
For each bag or other package containing more than one hundredweight—additional toll for each fifty-six pounds or part of fifty-six pounds excess weight	3	

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Vegetables fruit and plants—	s.	d.
For each waggon or vehicle of more than two wheels containing loose vegetables—		
When loaded in the body only	5	0
When loaded on the wings or higher than the body ...	10	0
For each cart or vehicle of not more than two wheels containing loose vegetables—		
When loaded in the body only	3	0
When loaded on the wings or higher than the body...	5	0
For each waggon or vehicle of more than two wheels containing plants trees or shrubs	10	0
For each cart or vehicle of not more than two wheels containing plants trees or shrubs	5	0
For each five or part of five bundles of celery (each bundle being of not more than twelve sticks)		4
For each bunch of bananas		4
For each twelve or part of twelve plants trees or shrubs	1	0
For each load bag of potatoes		3
For each half load bag or any less quantity of potatoes...		2
For each waggon or cart load of potatoes of not more than twelve sacks	4	0
For each waggon or cart load of potatoes of more than twelve sacks	5	0

GROUND SPACE.

Covered markets—

For the occupation and use of any space on the surface of the ground according to the size and dimensions of the same—		
For each superficial square foot of the ground space occupied or used for each weekday		3

Bird and poultry market—

For the occupation of each compartment or space according to dimensions two cages in height for each week-day—each lineal foot	1	0
For each additional cage in height—each lineal foot		6
For each basket crate box or other package of not more than five ducks fowls or chickens		4
For not more than twelve pigeons		4
For each additional six or part of six pigeons ...		3
For not more than twelve small birds not named above and for each additional six or part of six such birds ...		3

CART STAND.

For each motor vehicle of carrying capacity exceeding five tons	3	0
For each motor vehicle of carrying capacity exceeding two tons but not exceeding five tons	2	0
For each motor vehicle of carrying capacity of two tons or less	1	0
For the use of the stable and manger on any weekday for any cart or waggon for each horse	1	0
For each carrier's or porter's cart		6
For each cart other than a carrier's or porter's cart ...		2

TOLLS AND STALLAGES IN AN OPEN MARKET.

Ducks geese and turkeys—

	s.	d.
For each drove of geese or turkeys not more than twenty in number	2	6
For any number more than twenty—additional toll for each ten or part of ten in excess of twenty	1	0
For each drove of ducks not more than twenty in number	2	0
For any number more than twenty—additional toll for each ten or part of ten in excess of twenty	1	0
For each goose turkey duck fowl or chicken dead or alive otherwise exposed for sale		2
For each couple or brace of hares leverets pheasants partridges or other game in a basket hamper or other package		4
For each hare leveret or pheasant otherwise exposed for sale		2
For each brace of partridges grouse or other game otherwise exposed for sale		2
For each five couple or part of five couple of rabbits in a basket hamper or other package		4

Vegetables fruit and plants—

For each handcart containing fruit or vegetables ...	2	6
For each waggon containing plants trees or shrubs ...	10	0
For each cart containing plants trees or shrubs ...	5	0
For each handcart or truck containing flowers or plants trees or shrubs	3	0

GROUND SPACE.

For the occupation and use of any space on the surface of the ground for plants trees or shrubs or any other article or thing—

For each superficial square foot of the ground space occupied or used for each weekday	2	
For each basket or other package containing flowers herbs watercress or planting roots	4	
For sieves or other packages of fruit or vegetables for each five or part of five in number and each sieve not more than thirty pounds in weight	1	0

FOR SLAUGHTERING ANIMALS.

For each bull ox steer cow heifer or bullock	4	0
For each calf sheep lamb or goat	1	0
For each hog or pig not being a sucking pig	2	0
For each sucking pig		6
For each horse mule or ass	4	0

FOR LAIRAGE.

For each night—

For each bull ox steer cow heifer or bullock	6	
For each calf sheep lamb or goat	2	
For each hog or pig	4	
For each horse mule or ass	6	

FOR PENS IN THE CATTLE MARKET.

For each day—	s.	d.
For each pen for bulls oxen steers cows heifers or bullocks—		
Pens twenty feet by twenty feet	5	0
Pens twenty feet by sixteen feet	4	0
Pens twenty feet by ten feet	3	0
For each bull ox steer cow heifer or bullock	1	0
For each calf sheep lamb or goat		2
For each horse mule or ass	1	0

The foregoing tolls and stallages are to be paid and payable in respect of the occupation of any shop stall bench stand compartment or ground space or for any lair or pen as well by the original taker or occupier thereof for a part of a day as by any subsequent taker or occupier thereof for a part of a day.

FOR WEIGHING AND MEASURING.

Weighing—	£	s.	d.
For each cart waggon or motor vehicle			6
For each bull ox cow or other like cattle			6
For each five head or part of five head of sheep or pigs or other like animals			3
For each article or thing weighing not more than twenty pounds			1
For each article or thing weighing more than twenty pounds and not more than two hundred and forty pounds			2
For each article or thing weighing more than two hundred and forty pounds			4
Measuring—			
For any quantity of goods articles or things sold by cubic measure for each bushel or part of a bushel ...			1
For any quantity of goods articles or things sold by lineal measure for each ten yards or part of ten yards			1

IN THE CORN EXCHANGE.

Rents and entrance and other fees payable for each year—			
For each grocery stand in the farmers' market ...	3	3	0
For each full stand in the factors' market ...	15	15	0
For each half stand in the factors' market ...	10	10	0
For each leather fair stand in the factors' market ...	3	3	0
For land agents carriers forwarding agents carters engineers millwrights milling engineers coal dealers sack dealers manure dealers insurance agents and other members for each person	4	4	0
For space for advertisements or showcards according to size not exceeding	10	10	0
For the annual rent of each office not exceeding ...	200	0	0
For each letter box or locker	1	0	0

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